# SUPREME COURT OF INDIA

**APPELLATE JURISDICTION · CONSTITUTION BENCH (5 JUDGES)**

**Writ Petition (Civil) No. 118 of 2016** **CNR: SCIN010001182016**

*Date of Pronouncement: 22 August, 2017* *Citation: (2017) 9 SCC 1*

**CORAM:** Hon'ble J.S. Khehar, C.J., Kurian Joseph, R.F. Nariman, U.U. Lalit, S. Abdu

**Petitioner / Appellant: Shayara Bano & Others**

**- VERSUS -**

**Respondent / State: Union of India & Ministry of Law and Justice**

**SUBJECT: FAMILY LAW & CONSTITUTIONAL MORALITY** **AUTHORITY: Good Law (Constitution Bench Landmark)**

## JUDICIAL RATIO DECIDENDI & OPERATIVE PRINCIPLES:

Talaq-e-Biddat is manifestly arbitrary because it breaks marital ties capriciously and whimsically without any attempt at reconciliation. Manifest arbitrariness is a direct ground to invalidate legislation and personal practices under Article 14.

**STATUTORY PROVISIONS INTERPRETED:** Section 2 Shariat Act, Article 14, Article 15, Article 21, Article 25

## FINAL DISPOSITION: TALAQ-E-BIDDAT DECLARED VOID AND ILLEGAL

### EXECUTIVE SUMMARY:

*Five-judge bench by 3:2 majority declared the practice of instant Triple Talaq (Talaq-e-Biddat) void, illegal, and unconstitutional, applying the test of manifest arbitrariness under Article 14.*

**LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE**

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